# The Chennai Corporation Servants Conduct Rules, 1968

TAMILNADU
India

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## Rule THE-CHENNAI-CORPORATION-SERVANTS-CONDUCT-RULES-1968 of 1968

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### 1. Short title and application.

- These rules may be called the [Chennai] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.] Corporation Servants Conduct Rules, 1968.They shall apply to all persons appointed to Corporation services and posts in connection with the affairs of the Corporation other than members of All India Services and State Government services, who are subject to the conduct rules applicable to their respective services, whether on duty, leave or on foreign service.Unless otherwise, provided, these rules shall not apply to the Corporation Legal Adviser and other officials who are not full time officers, but are engaged by the Corporation to do specified work without prejudice to the regular exercise of their profession in other respects.

### 2. Definitions.

- In these rules, unless the context otherwise requires,-(1)"Corporation" means the Corporation of [Chennai] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.];(2)"Corporation servant" means any person appointed to any service or post in connection with the affairs of the Corporation of [Chennai] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.];Explanation. - A Corporation servant whose services are placed by the

Corporation at the disposal of the State Government, a company, Corporation or Organisation or another local authority shall, for the purposes of these rules, be deemed to be a Corporation servant serving under the Corporation, notwithstanding that his salary is drawn from sources other than from the funds of the Corporation of [Chennai] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.].(3)"Head of the department" means the Commissioner, Corporation of [Chennai] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.];(4)"Members of the family" in relation to Corporation servant includes-(i)the wife, child or step child of such Corporation servant, whether residing with him or not and in relation to a Corporation servant who is a woman, the husband residing with her and dependent on her, and(ii)any other person related, whether by blood or by marriage to the Corporation servant or to such Corporation servant's wife, wife or husband, and wholly dependent on such Corporation servant, but does not include a wife or husband legally separated from the Corporation servant, or a child or step child who is no longer in any way dependent upon him or her, or of whose, custody the Corporation servant has been deprived of by law.

## 3. Gifts.

(1)Save as otherwise provided in these rules, no Corporation servant shall, except with the previous sanction of the Government, accept or permit his wife or any other member of his family to accept from any person any gift:Provided that the sanction of Government shall not be necessary for the acceptance of-(a)gift from a person other than a person (friend or relative) of a value not exceeding Rs. 50 (Rupees fifty only) or 1 /4th (one-fourth) of the monthly emoluments of the Corporation servant concerned, whichever is less, on occasions other than those covered by sub-clause (b);(b)gifts from a personal friend of a value not exceeding Rs. 200 (Rupees two hundred only) on special occasions, such as weddings, anniversaries, funerals and religious functions when the making or receiving of such gifts is in conformity with the prevailing religious or social customs;(c)gifts from relatives without any monetary limit regarding their value on special occasions, such as weddings, anniversaries, funerals and religious functions when the making or receiving of such gifts is in conformity with the prevailing religious or social customs.Explanation. - For the purpose of this sub-rule, any towel, key or other similar articles offered to a Corporation servant at the laying of a foundation stone or the opening of a public building or any ceremonial function shall be deemed to be a gift.(2)If any question arises, whether any gift is one which can be accepted without the permission of the Government or if a Corporation servant is in any doubt whether a gift offered to him is one which can be accepted without the permission of the Government, a reference shall be made to the Government through proper channel by such Corporation servant and the decision of the Government thereon shall be final.(3)Nothing in this rule shall be deemed to prevent any Corporation servant from sitting at the request of any public body, for a portrait, bust, or statue not intended for presentation to him.(4)Corporation servants shall not make a habitual use of vehicles and animals belonging to persons other than a member of their family or to travel, free of charge, in any vehicle plying for hire.

## 4. Public demonstrations in honour of Corporation servants.

- No Corporation servant shall, except with the previous sanction of the Government, receive any complimentary or valedictory address or accept any testimonial or attend any meeting or entertainment held in his honour, or in the honour of any other Corporation servant:Provided that nothing in this rule shall apply to -(i)a farewell entertainment of a substantially private and informal character held in honour of a Corporation servant or any other Corporation servant on the occasion of his retirement or transfer, of any person who has recently quit the service of the Corporation ; or(ii)the acceptance of simple and inexpensive entertainments arranged by public bodies, or institutions; or(iii)the sitting for, or acceptance of, a copy of a group photograph of the officers, and servants of his office or department on the occasion of his transfer or retirement.

## 5. Subscription.

(1)Save as provided in sub-rule (3), no Corporation servant shall, except with the previous sanction of the Government or of such authority as may be empowered by them in this behalf, ask for or accept contributions to or otherwise associate himself with the raising of any funds in pursuance of any object whatsoever.(2)Permission may, after due consideration, be accorded in all cases where the Government support the institution concerned byway of grants or otherwise.(3)In the case of Flag Day collections, Corporation servants may participate on a voluntary basis.

## 6. Investments, lending and borrowing.

(1)No Corporation servant shall speculate in any investment.Explanation. - The habitual purchase or sale of securities of a notoriously fluctuating value shall be deemed to be speculation in investments within the meaning of this sub-rule.(2)No Corporation servant shall make or permit his wife or any other member of his family to make any investment likely to embarrass or influence him in the discharge of his official duties.(3)If any question arises whether a security or investment is of the nature referred to in sub-rule (1) or sub-rule (2), the decision of the Government thereon shall be final.(4)No Corporation servant shall, except with the previous sanction of the Government, lend money to any person possessing land or valuable property within the local limits of his authority or at interest to any personProvided that a Corporation servant may make an advance of pay to a private servant, or give a loan of a small amount free of interest to a personal friend or relative, even if such person possesses land or valuable property within the local limits of his authority.(5)No Corporation servant shall, save in the ordinary course of business with a bank or a firm of standing, borrow money from or otherwise place himself under pecuniary obligation to any person within the local limits, of his authority, or any other person, with whom he is likely to have official dealing nor shall he permit any member of his family, except with the previous sanction of the Government, to enter into any such transaction :Provided that a Corporation servant may accept a purely temporary loan of small amount, free of interest, from a personal friend or relative or operate a credit account with a bonafide tradesman.(6)When a Corporation servant appointed or transferred to a post of such a nature as to involve him in the breach of any of the provisions of sub-rule (4) or sub-rule (5), he shall forthwith report the circumstances to the Government and shall, thereafter, act in accordance with such orders as may be passed by the Government.(7)Corporation servants may

become members of, and place deposits in,non-agricultural co-operative societies including the [Tamil Nadu] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.] State Cooperative Bank Limited and other Central Banks.(8)Corporation servants may place deposits in, and purchase debentures of, the [Tamil Nadu] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.] Co-operative Central Land Mortgage Bank Limited, but shall not hold any office therein or take any part in the management thereof.(9)A Corporation servant may, with the previous sanction of the Head of the Department, become a member of a land mortgage bank or house mortgage bank, provided that he already owns land or house, as the case may be, in the area within the jurisdiction of such bank, but shall not hold any office therein or take any part in the management thereof.(10)If a Corporation servant is appointed or transferred to any area within the jurisdiction of a land mortgage bank or house mortgage bank of which he is a member, he shall, at once, bring the fact to the notice of his immediate superior who, if he has authority to do so, may re-post the Corporation servant to an area outside the jurisdiction of that bank, or if he has no authority to do so, submit the case for the orders of the officer having such authority.(11)Corporation servants may take out insurance policies from, and become members, of the South India Co-operative Insurance Society Limited.(12)Corporation servants may become members of Co-operative House' Building Societies.Explanation. - Co-operative house building societies aforesaid shall include all types of co-operative societies whose object is the construction of houses for their members or the grant of loans for such construction by their members.(13)Notwithstanding anything contained in this rule, a Corporation servant may borrow money from a co-operative society of which he is a member, provided that where the borrowing is on personal security, the surety shall be of a status equal to or higher than that of the borrower.(14)The prohibition against lending and borrowing of money applied to all loans, credits, advances, supply of articles or accommodation at unduly low rates or for insufficient consideration and to sales of property for inordinately low prices.(15)The fact that a Corporation servant lending money is acting as an executor, administrator or as a trustee without profit or advantage to himself shall not exempt him from the operation of this rule.(16)A Corporation servant who belongs to a joint Hindu family carrying on the business of money lending as an ancestral profession is exempted from the prohibition, provided he takes no active part in the business and is not employed in a place in which the business of the joint Hindu family is carried on.(17)A Corporation servant engaged in teaching is prohibited from having pecuniary relations with any pupil or ex-pupil or parent or guardian of any pupil or ex-pupil or with staff or establishments of the school or college in which he is employed.

## 7. Movable, immovable and valuable property.

(1)No Corporation servant shall, except after notice to the prescribed authority, acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift, exchange or otherwise either in his own name or in the name of any member of his family.Such a notice will be necessary even where any immovable property is acquired by any member of the family of the Corporation servant out of the resources of the Corporation servant:Provided that any such transaction conducted otherwise than through regular or reputed dealer, shall require the previous sanction of the prescribed

authority:Provided further that the previous sanction of the prescribed authority shall not be necessary for the acquisition of immovable property assigned by the Government to the Corporation servant.(2)A Corporation servant who enters into transaction concerning any movable property exceeding five hundred rupees in value, whether by way of purchase, sale or otherwise, shall forthwith report such transaction to the prescribed authority:Provided that no Corporation servant shall enter into any such transaction except with or through a regular or reputed dealer or agent or with the previous sanction of the said prescribed authority :Provided further that a Corporation servant, who is about to quit the local limits of his official authority may, without reference to the prescribed authority, dispose of any of his movable property by circulating lists of it among the public generally or by causing it to be sold by public auction.Explanation. - For the purposes of this sub-rule, the expression "movable property" includes the following property, namely:-(a)Jewellery, insurance policies, shares, securities and debentures;(b)loans, advances by such Corporation servant, whether secured or not; or(c)motor cars, motor cycles, horses or any other means of conveyance; and(d)refrigerators, radios and radiograms.For the purpose of sub-rules (1) and (2), the Tamil Nadu State Housing Board constituted under the [Tamil Nadu] [This Act was repealed and re-enacted as the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983).] State Housing Board Act, 1961 [Tamil Nadu] [This Act was repealed and re-enacted as the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983).] Act 17 of 1961) or any Housing Unit established by the said Board or a society registered or deemed to be registered as a co-operative society under the [Tamil Nadu] [This Act was repealed and re-enacted as the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983).] Co-operative Societies Act, 1961 ([Tamil Nadu] [This Act was repealed and re-enacted as the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983).] Act 53 of 1961), shall be deemed to be a regular or reputed dealer.(3)Every Corporation servant shall on his first appointment to any of the Corporation services and to the posts of Assistant Commissioners and Personal Assistant to the Commissioner under the Corporation and thereafter at intervals of every twelve months submit a return as required by sub-rule (7) in Form A appended to these rules of all immovable properties owned, acquired or inherited by him or held by him on lease or mortgage either in his own name or in the name of any member of his family or in the name of any other person.(4)The Government or any authority or officer empowered by them in this behalf may, at any time by general or special order require a Corporation servant of such movable or immovable property held or acquired by him or by any member of his family as maybe specified in the order. Such statement shall, if so required by the Government or by the authority or officer so empowered include details of the means by which or the source from which such properly was acquired.(5)(a)The prescribed authority for the purposes of this rule shall be the Commissioner, Corporation of [Chennai] [Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).].(b)In respect of a Corporation servant on foreign service or on deputation to any other local body or Government, the prescribed authority shall be the Commissioner, Corporation of [Chennai] [Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).].(6)Whenever a Corporation servant by inheritance, succession or bequest becomes possessed of immovable property in the place in which he is employed or of such interest in such immovable properly as contemplated by this rule, he shall communicate all particulars thereof through the usual channel to the prescribed authority.(7)Every member of a Corporation service and every person holding the posts of Assistant Commissioner and Personal Assistant to the

Commissioner under the Corporation shall submit not later than the 15th January each year, through the usual channel to the prescribed authority, a statement in Form A appended to these rules, showing all the immovable property of which he stood possessed or in which he had an interest at the close of the preceding calendar year:Provided that if in any year a Corporation servant has neither acquired nor relinquished or otherwise disposed of any immovable property or any interest in immovable property, he need not submit the statement referred to in this sub-rule (7):Provided further that in respect of immovable property acquired by any member of his family, a Corporation servant shall furnish a certificate to the prescribed authority in the following form along with the statement of immovable property referred to in this sub-rule.The immovable properties mentioned in the statement annexed have been purchased by (here give the name of the purchaser etc., and the nature of relationship to Corporation servant) out of funds not belonging to me and have no responsibility in regard to the transaction.(8)If a Corporation servant received an order of transfer to a place in which he possesses or has an interest in immovable property, he shall, at once, bring the fact to the notice of his immediate official superiors.(9)The head of the department shall maintain a register in Form B appended to these rules, showing all immovable property held by each Corporation servant and shall revise it each year with reference to the particulars furnished under sub-rule (7).(10)Any attempt to mislead and any failure to give full and correct information shall render the Corporation servant concerned liable to dismissal from Corporation service.(11)Tire restriction on the acquisition and possession of immovable property shall apply to the acquisition and possession of any personal interest in such property and to the acquisition and possession of such property by a Corporation servant in the name of any other person, but not to the acquisition or possession of an interest as trustee, executor or administrator only.(12)Except in accordance with the Standing Orders of the [Board of Revenue] [By virtue of section 10(1) of the Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980), any reference to the Board of Revenue shall be deemed-to be a reference to the State Government of the appropriate authority specified in the notification under sub-section (1) section 4 of the said Act.], no Government land shall be sold or granted on lease to any Corporation servant whether in permanent or temporary employment.(13)(a)A Corporation servant shall not ordinarily be allowed to acquire land within the city limits in which he is serving. Permission for such acquisition shall be granted only in very special circumstances.(b)A Corporation servant may usually be permitted to acquire immovable property outside the city limits in which he is serving. But, when on transfer to a place in which he holds immovable property, a Corporation servant makes the report required by sub-rule (15). The authority responsible shall ordinarily transfer him to another place, but if such transfer is not possible in the public interest, may require to divest himself of such property.(c)An annual statement shall be submitted to the Government by the Head of the Department not later than the 15th January in each year, of cases in which special permission has been granted by him,-(i)the acquisition by a Corporation servant of immovable property in the place in which he is employed; and(ii)the retention by a Corporation servant of immovable property in a place to which he has been transferred.(d)Nothing contained in classes (a) to (c) shall apply to the acquisition of land including house sites through the Tamil Nadu State Housing Board constituted under the Tamil Nadu State Housing Board Act, 1961 (Tamil Nadu Act 17 of 1961) or any Housing Unit established by the said Board or a society registered or deemed to be registered as a co-operative society under the [Tamil Nadu Co-operative Societies Act, 1961] [This Act was repealed and re-enacted by the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983).] (Tamil Nadu Act 53 of 1961) or any

other law for the time being in force,(14)In the case of a family governed by the Marumakkathayam or Aliyasantana Law, a junior member who is a Corporation servant shall not ordinarily be required to obtain sanction when immovable property is acquired by the managing member on behalf of the family, but this exception shall not apply to any acquisition, even though made in the name of the Karnavan or Yejman if it is shown that it is really intended to be the self acquired property of the Corporation servant.(15)The annual return shall include all immovable property acquired or registered in the name of the Corporation servant either on his own account or as a trustee, executor or administrator, or temple mirasdar, or acquired or registered in the name of or held or managed by, his wife or by any other member of his family living with, or in any way dependent on him. In the case of a Corporation servant who follows the Marumakkathayam or Aliyasanthana Law, the statement shall include acquisition of immovable property by his consort.

## 8. Private trade or employment.

(1)No Corporation servant shall, except with the previous sanction of the Government, engage himself directly or indirectly in any trade or business or undertake any employment:Provided that a Corporation servant may, without such sanction, undertake honorary work of a social or charitable nature or occasional work of a literary, artistic or scientific character, subject to the condition that his official duties do not thereby suffer; but he shall not undertake, or shall discontinue such work if so directed by the Government:Provided further that nothing contained in this sub-rule shall be deemed to require a Corporation servant who is nominated by the Governor as a member of an official body or a non-official body or an organisation or who seeks election as a member of a University body by virtue of the post of Headmaster held by him to obtain the previous sanction of the Government for undertaking and discharging his duties as such member.Explanation. - Canvassing by a Corporation servant in support of the business of insurance agency and such like owned or managed by his wife or any other member of his family shall be deemed to be a breach of this sub-rule.(2)No Corporation servant shall, except with the previous sanction of the Government,, take part in the registration, promotion or management of any bank or company registered under the Banking Companies Act, 1949 (Central Act X of 1949), or the Indian Companies Act, 1913 (Central Act VII of 1913), or the Companies Act, 1956 (Central Act I of 1956), or any other law for the time being in force :Provided that a Corporation servant may, subject to sub-rules (7) to (10), take part in the registration, promotion or management of a co-operative society registered or deemed to be registered under the [Tamil Nadu Co-operative Societies Act, 1961] [This Act was repealed and re-enacted by the Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983).] (Tamil Nadu Act 53 of 1961) or any other law for the time being in force or of a literary, scientific or charitable society registered under the Societies Registration Act, 1860 (Central Act 21 of 1860), or any other law for the time being in force.(3)(a)A Corporation servant shall not act as Arbitrator in any case without the sanction of the head of the department, unless he be so directed to act by a Court having authority to appoint an Arbitrator.(b)No Corporation servant shall act as an Arbitrator in any case which is likely to come before him in any shape by virtue of executive office which he may be holding.(c)If a Corporation servant acts as arbitrator at the private request of disputants, he shall not accept any fees.(d)If he acts by appointment of a Court of law, he may, notwithstanding anything contained in Subsidiary Rule 4 under Fundamental Rules 46 and 47, accept such fees, as the Court may fix.(4)(a)A Corporation servant shall not, without the permission of the Government,

publish any book or engage himself habitually in literary or artistic work of any kind.(b)Permission to publish a book shall ordinarily be given subject to the condition that the Corporation servant does not use his time and official influence for promoting the sale of copies of the book.(c)Permission to accept remuneration on "royalty basis" from the publishers shall be given in all cases except in the case of text books for use in educational institutions. In the case of text books, permission to accept remuneration shall be given subject to the condition that the Corporation servant retains no interest in the sale of copies of the book and that he receives only a lump sum as remuneration from the publisher.Explanation. - For determining whether a book is a text book or is a general book, the chief consideration shall be whether it is being submitted to the Text Book Committee, in the case of text books for elementary and secondary schools and whether it is a book written according to tire syllabus prescribed by the University and is being submitted to the appropriate University body for approval, in case of text books for colleges. A general book which may later happen to be approved as a text book shall not be deemed to be a text book for the purpose of this clause.(d)While applying to the Government for permission to publish a book which relates to acts or policies of Government, the Corporation servant-shall submit to the Government for scrutiny a manuscript copy thereof.(e)No Corporation servant who is a member of the Text Book Committee shall write or edit any text book for use in a recognized school during his membership of the Committee.Explanation. - A recognized school shall mean a school maintained by, or opened with the sanction of the Government or to which recognition has been accorded under the Tamil Nadu Educational Rules or under the rules framed under the Tamil Nadu Elementary Education Act, 1920 (Tamil Nadu Act VIII of 1920).(5)A Corporation servant may, without the previous permission of the Commissioner, engage for driving his car, the peon assigned to him, but such engagement shall be a private engagement between the officer and the peon and shall not form part of, or interfere in any maimer with the normal official duties of such peon.(6)The employment of a Corporation servant or a person in the Class IV. establishment by an officer in making purchases or in any private ma tiers in which the receipt or expenditure of money is concerned is most strictly prohibited. Nothing in this rule shall preclude an officer from employing a Corporation servant or a person in the Class IV establishment for providing for him a conveyance of necessary supplies while he is travelling on duty, though in all such transactions constant vigilance is needed to prevent cheating and extortion.(7)No Medical Officer shall maintain or have any financial interest in a private nursing home, hospital or similar establishment nor shall be habitually accommodate paying patients in his own residence for more than 24 hours. He may, however, treat patients in a private nursing home, provided that the home is not reserved for the admission of his own cases and allows the admission of patients of any other registered medical practitioner.(8)No Corporation servant shall accept a paid employment in any company, mutual benefit society or co-operative society or act as an agent, whether paid by salary or commission to any insurance company or society:Provided that a Corporation servant may take part in the management of a mutual benefit society, if he has first obtained the sanction of the head of the department and a certificate from him to the effect that the work undertaken will be performed without detriment to his official duties and such Corporation servant does not accept any remuneration.(9)Corporation servants shall be at liberty to take part in the promotion of co-operative societies, but no Corporation servant shall, except with the sanction of the Government, hold office in any co-operative society or serve on any committee appointed for the management of its affairs unless the society is composed wholly of Corporation servants or partly of Corporation servants and partly of employees of Government:Provided that the

Corporation servants may hold office in co-operative house building societies or serve on any committee appointed for the management of its affairs.Explanation. - Co-operative house building societies aforesaid shall include all types of co-operative societies whose object is the construction of houses for their members or the grant of loans for such construction by their members.(10)Subject to the sanction and certificate referred in sub-rule (8) and notwithstanding anything contained in Subsidiary Rule 4 under Fundamental Rules 46 and 47, a Corporation servant who is a member of co-operative society composed wholly of Corporation servants or partly of Government may accept remuneration for keeping the accounts of the society.(11)The head of the department may grant permission to Corporation servants to attend and take part in such of the meetings, conferences and committees in which the Government have agreed to participate.

## 9. Insolvency and habitual indebtedness.

- A Corporation servant shall endeavor to avoid habitual indebtedness or insolvency. If a Corporation servant is adjudged or declared insolvent, or has incurred debts aggregating a sum which, in ordinary circumstances, he could not repay within a period of two years or if a part of his salary is frequently attached for a period of two years, or is attached for a sum which, in ordinary circumstances, he could not repay within a period of two years, he shall be presumed to have contravened this rule. But, he shall not be so deemed if he proves that insolvency or indebtedness is the result of circumstances, which, with the exercise of ordinary diligence, he could not have foreseen or over which he had no control, and had not proceeded from extravagant or dissipated habits. A Corporation servant who becomes the subject of legal proceedings for insolvency shall forthwith report the full facts to the head of the department.

## 10. Unauthorised communication of information.

(1)No Corporation servant shall, except in accordance with any general or special order of the Government or in the performance in good faith of the duties assigned to him, communicate, directly or indirectly, any official document or information to any Corporation servant or any other person to whom he is not authorized to communicate such document or information.(2)Sub-rule (1) shall apply to the Corporation Legal Adviser and other officials who are not full time officers, but are engaged by the Corporation to do specified work without prejudice to the regular exercise of their profession in other respects.

## 11. Connection with Press, Television or Radio.

(1)No Corporation servant shall, except with the previous sanction of the Government, own wholly or in part or conduct or participate in the editing or managing of any newspaper or other periodical publication.(2)No Corporation servant shall, except with the previous sanction of the head of the department or of any authority or officer empowered by them in this behalf or in the bona fide discharge of his duties, contribute any article or write any letter either anonymously or in his own name or in the name of any other person to any newspaper or other periodical publication:Provided that no such sanction shall be required if such contribution or writing is of a purely literary, artistic or scientific character.(3)No Corporation servant shall, except with the previous sanction of the head

of the department or of any authority or officer empowered by them in this behalf or in the bona fide discharge of his duties, participate in a television programme or radio broadcast:.Provided that no such sanction shall be required, if such television" programme or radio broadcast is of a purely literary, artistic or scientific character or if the Corporation servant concerned has responsibility at the policy making level or at the implementation level for the subject of the television programme or radio broadcast.(4)A Corporation servant who is invited or who wishes to participate in a television programme or to deliver a radio broadcast talk and has to obtain the previous sanction under sub-rule (3), shall intimate to the head of the department through the proper channel the particulars relating to the television programme or the subject of the radio broadcast talk and if so required shall submit the full material relating to the television programme or the full text of the radio broadcast talk for their approval before participating in the television programme or before the radio broadcast talk is delivered.(5)The provision of sub-rules (3) and (4) shall apply mutatis mutandisto the playing of prepared "recitals" of gramophone records.(6)This rule shall apply to the Corporation Legal Advisers and other officials who are not full time officers, but are engaged by the Corporation to do specified work without prejudice to the regular exercise of their profession in other respects.

## 12. [ Criticism of Corporation Council, State Government and the Central Government. [Substituted by G.O.Ms. No. 2009, R.D. & L.A. dated the 30th November 1978.]

(1)No Corporation servant shall, in any radio broadcast or in any document published, anonymously or in his own name or in the name of any other person or in any communication to the press or in any public utterance, make any statement of fact or opinion-(i)which has the effect of an adverse criticism on any current or recent policy or action of the Corporation Council, the State Government or the Central Government;(ii)which is capable of embarrassing the relations between the Corporation Council and the Government of any State or Central Government;(iii)which is capable of embarrassing the relations between the Central Government and the Government of any foreign State :Provided that nothing in this rule shall apply to any statement made or views expressed by a Corporation servant in his official capacity or in the due performance of the duties assigned to him.(2)A Corporation servant shall not, except in the discharge of his official duties, preside over, or take part in the organisation or occupy a prominent position at, or address, any non-official meeting or conference at which it is likely that speeches may be made or resolutions may be proposed or passed criticising the action of the Corporation Council or the Government or requesting the Corporation Council or the Government to take certain action other than to make grants admissible under Government rules or orders in support of educational or similar institutions.Explanation. - Regularly convened meetings for the transaction of their legitimate business of Corporation Council, Municipal Councils and similar bodies established by law or created by the Government and of associations of Corporation servants recognised by the Government and of committees or branches of such bodies or associations and meetings called by the Sheriff of [Chennai] are not "non-official" meetings for the purpose of this rule.(3)Nothing contained in this rule shall be deemed to prohibit any Corporation servant from participating in discussions at any private meeting solely of Corporation servants or of any recognised association of Corporation servants, of matters which affect the personal interests of such servants individually or generally:Provided that nothing

contained in this sub-rule shall be construed to limit or abridge the power of the Corporation Council to require any Corporation servant to publish and explain any policy or action of the Government in such manner as may appear to them to be expedient or necessary.(4)A Corporation servant who intends to publish any document or to make any communication to the press or to deliver any public utterance containing statements in respect of which any doubt as to the application of the restrictions imposed by this rule may arise, shall submit to the Corporation Council, a copy or draft of the document which he intends to publish or of the utterance which he intends to deliver, and shall, thereafter, act in accordance with such orders as may be passed by the Corporation Council.(5)This rule shall apply to the Corporation Legal Advisors and other officials who are not full time officers, but are engaged by the Corporation to do specified work without prejudice to the regular exercise of their profession in other respects.]

## 13. Evidence before Committee or any other authority.

(1)Save as provided in sub-rule (3), no Corporation servant shall, except with the previous sanction of the Commissioner, give evidence in connection with any inquiry conducted by any person, committee or authority.(2)Where any sanction has been accorded under sub-rule (1), no Corporation servant giving such evidence shall criticise the policy or any action of the Corporation Council, Central Government or of a State Government.(3)Nothing in this rule shall apply to-(a)evidence given at an enquiry before an authority appointed by the Government, or by Parliament or by a State Legislature ; or(b)evidence given in any judicial inquiry; or(c)evidence given at any departmental inquiry ordered by the head of the department or the Government.(4)This rule shall apply to the Corporation Legal Advisors and other officials who are not full time officers, but are engaged by the Corporation to do specified work without prejudice to the regular exercise of their profession in other respects.

## 14. Taking part in politics and elections.

(1)No Corporation servant shall be a member of, or be otherwise associated with any political party or any organisation which takes part in politics nor shall take part in, subscribe in aid of, or assist in any other manner, any political movement or activity.(2)It shall be the duty of every Corporation servant to endeavour to prevent any member of his family from taking part in, subscribing in aid of, or assisting in any other manner, any movement or activity, which is, or tends directly or indirectly to be subversive of the Government as by law established or die Corporation and where a Corporation servant is unable to prevent a member of his family from taking part in, or subscribing in aid of, or assisting in any manner, any such movement or activity, he shall make a report to that effect to the Government.(3)If any question arises whether any movement or activity falls within the scope of this rule, the decision of the Government thereon shall be final.(4)No Corporation servant shall canvass or otherwise interfere or use his influence in connection with, or take part in, an election to any legislature or local authority:Provided that -(i)a Corporation servant qualified to vote at such election may exercise his right to vote, but where he does so, he shall give no indication of the manner in which he proposes to vote or has voted;(ii)a Corporation servant shall not be deemed to have contravened the provisions of this rule by reason only that he assists in the conduct of an election in the due performance of a duty imposed on him by or under any law for the time being in

force.Explanation. - (1) Nothing contained in this sub-rule shall be deemed to prohibit the wife of a Corporation servant or any other member of his family living with, or in any way depending on him from standing for election to any legislature or to any local authority and from canvassing for other candidates.Explanation. - (2) The display by a Corporation servant on his personal vehicle or residence of any electoral symbol shall amount to using his influence in connection with an election within the meaning of this sub-rule.(5)Seditious propaganda or the expressing of disloyal sentiments by a Corporation servant shall be regarded as sufficient ground for dispensing with his services. Such a conduct in the case of a pensioner shall be dealt with under Article 351 of the Civil Service Regulations.(6)A Corporation servant proposing or seconding the nomination of a candidate at an election or acting as a polling agent shall be deemed to have committed a breach of this rule.(7)The above rule shall apply to the Corporation Legal Advisors arid other officials who are not full lime officers, but are engaged by the Corporation to do specified work without prejudice to the regular service of their profession in other respects.

## 15. Vindication of acts and character of Corporation servants.

(1)No Corporation servant shall, except with the previous sanction on the head of the department, have recourse to any Court or to the press forthe vindication of any official act which has been the subject matter of adverse criticism or attack of defamatory character.Explanation. - Nothing in this rule shall be deemed to prohibit a Corporation servant from vindicating his private character or any act done by him in his private capacity.(2)No Corporation servant shall, except with the previous sanction of the head of the department, accept from any person or body of persons compensation of any kind for any malicious prosecution brought against him or for any defamatory attack made on his public acts of character, unless such compensation has been awarded by a competent Court.

## 16. Membership of Service Associations.

(1)No Corporation servant shall be a member, representative or officer of any association representing, or purporting to represent, Corporation servants or any class of Corporation servants, unless such association satisfies the following conditions, namely:-(a)Membership of the association shall be confirmed to a distinct class of Corporation servants and shall be open to all Corporation servants of that class.(b)The association shall not be in any way connected with, or affiliated to,-(i)any association which does not; or(ii)any federation or associations which do not, satisfy condition (a);(c)The association shall not be in any way connected with any political party or organisations, or engage in any political activity;(d)The association shall not-(i)issue or maintain any periodical publication except in accordance with any general or special order of the Government;(ii)except with the previous sanction of the Government, publish any representation on behalf of its members, whether in the press or otherwise;(iii)in respect of any election to a legislative body, whether in India or elsewhere, or to a local authority or body -(a)pay, or contribute towards, any expenses incurred in connection with his candidature by a candidate for such election;(b)by any means support the candidature of any person for such election; or(c)undertake or assist in the registration of electors, or the selection of a candidate for such election;(iv)maintain or contribute towards the maintenance of any member of a legislative body, whether in India or elsewhere, or of any member of a local authority or body; or(v)pay, on contribute towards the expenses of any trade

union which has constituted a fund under section 16 of the Indian Trade Unions Act, 1926 (Central Act XVI of 1926):Provided that the Government may, for reasons to be recorded in writing by general or special order, dispense with conditions (a) and (b) in the case of any Association.(2)No Corporation servant shall join or continue to be a member of any service association of Corporation servants-(a)which has not, within a period of six months from its formation, obtained the recognition of the Government; or(b)recognition in respect of which has been refused or withdrawn by the Government:Provided that the Corporation servant may join or continue to be a member of any service association of Corporation servants, if such association is a branch of, or affiliated to, any service association of Corporation servants which has obtained the recognition of the Government or in respect of which recognition has not been refused or withdrawn by the Government.

## 17. Employment under or with near relatives in service and employment of near relatives in firms enjoying Corporation patronage.

(1)(a)Every member of a Corporation service shall inform the head of the department of any reason that there may be, why it is undesirable in the public interest that he should be employed in a particular circle or division such as the near relationship of himself or his wife to any person or persons residing in that circle or division.(b)Every member of a Corporation service shall inform the head of the department if a member of a Corporation service closely related to him is posted to work under him.(2)No Corporation servant belonging to any State service shall, except with the previous sanction of the Corporation, permit his son, daughter or dependent to accept employment with any private firm with which he has official dealings or with any other firm having official dealings with the Corporation:Provided that where the acceptance of the employment cannot await the prior permission of the Corporation or is otherwise considered urgent, the matter shall be reported to the Corporation and the employment may be accepted provisionally subject to the permission of the Corporation.(3)No Corporation servant shall, in the discharge of his official duties, deal with any matter or give or sanction any contract to any undertaking or any other person if any member of his family is employed in that undertaking or under that person or if he or any member of his family is interested in such matter or contract in any other manner and the Corporation servant shall refer every such matter or contract to the head of the department and the matter or contract shall, thereafter, be disposed of according to the instructions of the authority to whom the reference is made.

## 18. Canvassing of non-official or other outside influence.

- No Corporation servant shall bring or attempt to bring any political or other outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service under the Corporation.Explanation. - A Corporation servant causing his own case to be made the subject of all interpellation in Corporation Council or the State Legislature shall be deemed to have contravened this rule.

## 19. Bigamous marriages.

(1)No Corporation servant who has a wife living shall contract another marriage without first obtaining the permission of the Commissioner, notwithstanding that such subsequent marriage is permissible under the personal law for the time being applicable to him.(2)No woman Corporation servant shall marry any person who has a wife living, without first obtaining the permission of the Commissioner.

## 20. Integrity and devotion to duty.

- Every Corporation servant shall, at all times, maintain absolute integrity and devotion to duty.

## 21. Strikes.

- No Corporation servant shall engage himself in strike or in incitements thereto or in similar activities.Explanation. - For the purpose of this rule, the expression "similar activities" shall be deemed to include the absence from work or neglect of duties without permission and with the object of compelling something to be done by the Commissioner or the Government or any demonstrative fast usually called "Hunger strike" for similar purposes.

## 22. Demonstration.

- No Corporation servant shall engage himself or participate in any demonstration which is prejudicial to the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign states, public order, decency or morality, or which involves contempt of Court, defamation or incitement to an offence.

## 23. Joining of Associations by Corporation servants.

- No Corporation servant shall join or continue to be a member of an association, the objects or activities of which are prejudicial to the interests of the sovereignty and integrity of India or public order or morality.

## 24. Consulting a medical practitioner for the purpose of obtaining leave.

- It shall be the duty of every Corporation servant who consults a medical practitioner with a view to obtain leave or an extension of leave on medical certificate to disclose to that practitioner the fact of his having consulted any other practitioner for the same purpose and the result of such consultation. Omission on the part of any Corporation servant to do this or any false statement made by him to a medical practitioner in this respect shall entail serious departmental action.

## 25. Recommendation.

- No Corporation servant shall, except by endorsement on a written application submitted by a candidate officially through him, recommend to any selecting, appointing or promoting authority, or to any individual who is a member of any such authority, or of its staff, any candidate for any post in the service of the Corporation.

## 26. Purchase of resignation.

- Corporation servants are hereby prohibited from entering into any pecuniary arrangement for the resignation by one of them of any office under the Corporation for the benefit of the others. Any nomination or appointment consequent upon such resignation shall be cancelled and such parties to the arrangement as are still in the service shall be suspended, pending the orders of the Government.

## 27. Representations to Ministers.

- No Corporation servant shall make representations to Ministers direct or send direct to Ministers advance copies of such representations made by him to the Government through the proper official channel.

## 28. Refusal to receive pay.

- Concerted or organised refusal on the part of the Corporation servants to receive their pay shall entail serious disciplinary action.

## 29. Application for private employment.

(1)No person employed in any Corporation service or post in connection with the affairs of the Corporation shall apply for private employment or signify his willingness to accept such employment without having previously obtained the permission in writing of the appointing authority in respect of the post which he is holding :Provided that in the case of any such person who is on leave preparatory to retirement, such permission may be given by the appointing authority in respect of the post.(2)(a)Permission to apply for or accept private employment shall normally be granted to a person who is on leave preparatory to retirement unless the employment is in the trading concern in India. Permission to apply for or accept private employment in a trading concern in India shall be granted only in very exceptional cases and may be subject to the condition of immediate retirement.(b)Permission to apply for or accept private employment shall not be granted to any other person unless the competent authority is satisfied that his premature resignation may be accepted without detriment to the public service.(c)the previous approval of the Corporation and the State Government shall be obtained in the case of applications from person who have been given special and expensive training at the cost of the Corporation and the State Government to increase their utility to the Corporation and the Stale Government.(3)If a person

who is refused permission to apply for or accept private employment wishes to resign his appointment under the Corporation, such resignation shall ordinarily be accepted.(4)Where a person who is not on leave preparatory to retirement is permitted to apply for or accept private employment, he shall resign his appointment under the Corporation immediately on accepting such employment.

## 30. Application for posts.

- A person in Corporation service under the administrative control of the Corporation applying for a post under the State Government or another State Government or the Government of India, shall submit his application through the authority competent to appoint him to the post which he holds at the time of making the application. Such authority shall decide whether the applicant shall be permitted to apply. In the case of an application for a post under the State Government or another State Government or the Government of India, the appointing authority shall decide whether the application may be forwarded or not and send the case to the State Government for orders with its recommendation. In making a recommendation in this regard, the fact that the applicant has been given special training wholly or partly at the cost of the Corporation or the State Government shall also be taken into consideration. Ordinarily applications may be forwarded unless it is considered that by so doing, the interests of Corporation services are likely to suffer.

## 31. Interpretation.

- If any question arises relating to the interpretation of these rules, it shall be referred to the Government whose decision thereon shall be final.

## 32. Repeal and saving.

- Nothing contained in these rules shall adversely affect any person holding any of the posts referred to in these rules on the date of coming into force of these rules.Form A[See sub-rules (3) and (7) of rule 7]Statement of immovable property on first appointment for the year.....

1. Name of the Officer (in full) and service to which theofficer belongs.
2. Name of the Officer and department in which employed.
3. Present post held.
4. Date of appointment.
5. Present Pay.

Name and details of property

| Name of District/ Taluk and village in whichproperty is situated | Housing and other buildings | Lands and other buildings | Present value | If not in own name |
|---|---|---|---|---|
| (1) | (2) | (3) | (4) | (5) |

| How acquired? Whether by purchase, lease,mortgage, inheritance, gift or otherwise with date of acquisitionand name with details of person or persons from whom acquired | Annual income from the property | Remarks (by what means and for what purpose theproperty was acquired should also be stated here) |
|---|---|---|
| (6) | (7) | (8) |

Inapplicable clause to be struck out.In cases where it is not possible to assess the value accurately, the approximate value in relation to present condition may be indicated.....SignatureDate :Includes short term lease also.Explanation. - The declaration form is required to be filled in and submitted by every Corporation servant on first appointment to the service and thereafter at an interval of every twelve months, giving particulars of all immovable property owned, acquired or inherited by him or held by him on lease, mortgage or otherwise either in his own name or in the name of any member of his family or in the name of any other person.Form-B[See sub-rule (9) of rule (7)]Register of immovable property and interest in, immovable property held by, the corporation servant.

| Name of the Corporation servant | Date of entertainment in the corporationservice | Department in which employed | District division in which property is situated | Nature of property |
|---|---|---|---|---|
| (1) | (2) | (3) | (4) | (5) |

| In whose name registered | When acquired, inherited etc. | By what means and for what purpose acquired | Nature of interest possessed by the officerconcerned in such property | Remarks |
|---|---|---|---|---|
| (8) | (9) | (10) | (11) | (12) |